

RFAs

Plaintiff argues that Defendant failed to serve verified substantive responses to Requests for Admission, Set One (“RFAs”), nos. 1 and 6-11. Plaintiff contends that the requests properly seek facts regarding the alleged malpractice. Plaintiff requests \$3,210 in sanctions.

In opposition, Defendant argues that the requests call for conclusions, expert opinions, and speculation. Defendant asserts that objection-only responses did not require verification. He nonetheless submits a belated verification. He also argues Plaintiff’s separate statement inaccurately reproduces the responses to nos. 8-11. He requests \$1,620 in cross-sanctions.

Defendant correctly argues that objection-only responses need not be verified. (CCP § 2033.240(a).) Nevertheless, “when a party is served with a request for admission concerning a legal question properly raised in the pleadings he cannot object simply by asserting that the request calls for a conclusion of law. He should make the admission if he is able to do so and does not in good faith intend to contest the issue at trial, thereby ‘setting at rest a triable issue.’ [citation.] Otherwise he should set forth in detail the reasons why he cannot truthfully admit or deny the request.” (*Burke v. Superior Court* (1969) 71 Cal.2d 276, 282.)

Nos. 1, 6, & 7 concern whether Plaintiff had “a meritorious and sufficient defense” to the *Geaux Industries* matter, whether Defendant “failed to respond to the summons and complaint” in *Geaux Industries*, and whether Defendant “failed to attempt to set aside the default judgment entered against Plaintiff” in that case. Defendant’s objections do not justify refusing to answer.

The separate statement, however, appears to reproduce the response to no. 7 as the response to nos. 8-11, according to Defendant. Plaintiff did not substantively address this contention with his reply. A separate statement must accurately reproduce the text of each disputed response (CRC rule 3.1345(c)(2)), and Plaintiff failed to do so here. The court denies the motion as to nos. 8 to 11.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505034	PISCOPO vs CGP MAINTENANCE & CONSTRUCTION SERVICES, INC	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling: Intervenor BERKSHIRE HATHAWAY GUARD INSURANCE COMPANIES’ unopposed Motion to intervene is granted.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505180	CITY OF RIVERSIDE vs LOPEZ	MOTION TO APPOINT RECEIVER

Tentative Ruling: Petitioner City of Riverside’ Motion to Appoint a Receiver is granted.